



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 27 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11542
(FIRST REVISION)

EXPIRATION DATE: September 30, 2000

1. GRANTEE: Construction Support Equipment Mfg. Inc.
Abuquerque, New Mexico.
2. PURPOSE AND LIMITATIONS:

This exemption authorizes the manufacture, marking and sale of one non-DOT specification cargo tank to be used for the transportation in commerce of gasoline. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 107.503(b)(1) and 178.340-5(d).
5. BASIS: This exemption is based on the application of Construction Support Equipment Mfg. Inc. dated August 7, 1998, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Gasoline	3	UN 1203	II

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7. PACKAGING and SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a single non-DOT specification cargo tank motor vehicle (serial number CSE-0184-01), designed and manufactured by Construction Support Equipment Mfg. Inc. (CSE), constructed of mild steel and having a capacity of 1000 gallons. The cargo tank is depicted in CSE drawing number 1000-T and described in the application, both of which are on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The cargo tank complies with requirements for DOT Specification MC-306 except as follows:

(1) the manufacturer was not authorized to use the ASME "U" stamp on March 29, 1993, the date of manufacture, and

(2) the weld joint compliance test required in 178.340-5(d) was not done.

b. TESTING - The non-DOT specification cargo tank motor vehicle must comply with all requirements for periodic testing and inspection of Part 180 Subpart E for MC-306 cargo tank motor vehicles.

c. No new construction is authorized.

8. SPECIAL PROVISIONS:

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. MARKING - The cargo tank must be plainly marked on the right side near the front, in letters two inches high on a contrasting background, "DOT-E 11542".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

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- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

Alan I. Roberts
407. Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

10/27/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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